



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

March 21, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21971

EXPIRATION DATE: 2025-08-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: H55 SA
Sion, Switzerland

U.S. AGENT: KMJ Unlimited
Miami Beach, FL

2. PURPOSE AND LIMITATIONS:

a. This emergency special permit authorizes the transportation in commerce of lithium batteries exceeding 35 kg via cargo-only aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.

b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.

c. No party status will be granted to this special permit.

d. This special permit serves as an approval under Special Provision A99 of the ICAO TI and as a "Competent Authority Approval" as defined under 49 CFR 107.1.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Hazardous Materials Table Column (9B) in that a battery may not exceed 35 kg when transported aboard aircraft, except as specified herein.

Tracking Number: 2025034822

5. BASIS: This emergency special permit is based on the application of H55 SA dated March 18, 2025, submitted in accordance with § 107.117 and the determination it was necessary to prevent significant economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

- (1) Inner Packaging: Each battery pack must be placed in a non-metallic inner packaging that completely encloses the module.
- (2) Outer Packaging: No more than two (2) inner packagings may be placed in an UN50D plywood large packaging box meeting the performance criteria for Packing Group II; and packed as described in the application on file.
- (3) Packages offered for transportation must be in accordance with the requirements in Packing Instruction 974 of the Supplement to the ICAO TI. Additionally, waste lithium battery assemblies and lithium battery assemblies being shipped for recycling or disposal are forbidden from air transport, and lithium battery assemblies must not be packed in the same outer packaging with substances and articles of Class 1 (explosives) other than Division 1.4S, Division 2.1 (flammable gases), Class 3 (flammable liquids), Division 4.1 (flammable solids), or Division 5.1 (oxidizers).
- (4) The battery net weight may not exceed 100.6 kg (221.8 pounds) per outer packaging.
- (5) Do not stack outer packaging

b. TESTING:

- (1) Each cell within the module must be of a type tested in accordance with the UN Manual of Tests and Criteria, 6th Revised Edition.
- (2) Each battery module must be of a type tested in accordance with the UN Manual of Tests and Criteria, 7th Revised Edition.

c. OPERATIONAL CONTROLS:

- (1) Only batteries as outlined in the application dated March 18, 2025, and on file with the Office of Hazardous Materials Safety, may be offered for transportation under the terms of this special permit. These batteries are identified as:
 - (i) Battery Pack 1 has 62 battery modules in series identified as model 9155 and 558 Samsung cells (model INR21700-505);
 - (ii) Battery Pack 2 has 52 battery modules in series identified as model 9155 and 468 Samsung cells (model INR21700-505); and
 - (iii) Battery Pack 3 has 34 battery modules in series identified as model 9155 and 342 Samsung cells (model INR21700-505)
- (2) Each battery pack has a maximal voltage of 260.4V, 218.4V, and 142.8V and rated energy rating of 9.84 kWh, 8.26 kWh, and 5.4 kWh, respectively for battery packs 1, 2, and 3.
- (3) All battery packs must be offered for transportation at a state of charge not exceeding 30 percent.
- (4) The battery packs must be equipped with an effective means of preventing dangerous reverse current flow for cells that are connected in parallel.
- (5) Cells and battery packs must be protected against short circuiting or over discharge between cells in the battery modules and battery packs and any overcharge of the battery.
- (6) The battery packs must be equipped with a battery management system (BMS).
- (7) Lithium ion battery packs must be packed to prevent accidental activation of the battery and secured to prevent shifting and minimize vibrations.

(8) Cells, battery modules, or battery packs that are leaking or liable to rapidly disassemble, dangerously react, produce a flame or a dangerous evolution of heat or a dangerous emission of toxic, corrosive, or flammable gases, or vapors under normal conditions of transport may not be transported under this special permit.

(9) All personnel involved in the handling, packing, and shipping of the batteries must complete all required training and follow the established safety procedures.

(10) Emergency response information must be provided and available via an emergency response telephone number for each shipment.

(11) All incidents shall be reported within 72 hours of the incident.

(12) Any changes to the battery or cell from the types listed above invalidate this special permit.

d. MARKING: Each package, and overpack if used, prepared under the provisions of this special permit must be plainly marked with the special permit number: "DOT SP 21971".

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit, destination, and the State of Operator.

d. The grantee must maintain the following record and upon request make this record available to DOT representatives or enforcement officials. The record must contain a listing and number of shipments made to include:

(1) Dates of shipment; and

(2) Description of each type of shipment.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo-only aircraft. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a horizontal line.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CB/TG